

## PRIVACY POLICY FOR WEBSITE

This Privacy Policy ("**Policy**") is issued by Lenient Tree, the owner and operator of the digital platform located at <https://www.lenienttree.com/> (hereinafter referred to as "**Lenient Tree**," "**we**," "**us**," or "**our**"). This Policy serves as a formal disclosure to all users, students, and visitors (collectively referred to as "**Data Principals**") regarding the collection, storage, and processing of their digital personal data.

In accordance with the Digital Personal Data Protection Act, 2023 ("**DPDPA 2023**"), Lenient Tree operates as a "**Data Fiduciary**." We recognize our legal and ethical responsibility to process personal data in a manner that respects the rights of Data Principals while ensuring the security and integrity of the information entrusted to us. This Policy outlines the categories of data we process, the specific purposes of such processing, and the robust safeguards we have implemented to protect your privacy.

This document is identified as Version 2.0 (DPDPA Compliance Update), representing a significant revision to our data handling practices to ensure full alignment with the statutory mandates of the DPDPA 2023. This version supersedes any previous privacy policies or data handling statements issued by Lenient Tree prior to the effective date mentioned herein.

This Privacy Policy is effective as of May 28, 2026. By accessing our website or utilizing our services, you acknowledge the terms set forth in this Policy. Our operations, including all data processing activities and the resolution of any disputes arising therefrom, are governed by the laws of India and are subject to the jurisdiction of the courts in Ernakulam, Kerala.

## RECITALS

WHEREAS, Lenient Tree (the "**Data Fiduciary**") owns and operates the website located at [www.lenienttree.com](http://www.lenienttree.com), providing a platform for student competitions, portfolio building, and event management services that involve the systematic processing of personal data.

WHEREAS, the Parliament of India has enacted the Digital Personal Data Protection Act, 2023 ("**DPDPA**") to regulate the processing of digital personal data in a manner that recognizes both the right of individuals to protect their personal data and the necessity of processing such data for lawful purposes.

WHEREAS, the Data Fiduciary is committed to upholding the highest standards of data privacy and security, ensuring that all data processing activities are conducted with transparency, accountability, and in strict adherence to the provisions of the DPDPA and other applicable laws within the jurisdiction of Ernakulam, Kerala, India.

WHEREAS, this Privacy Policy is established to define the foundational principles and legal framework under which Lenient Tree collects, uses, stores, and protects the personal data of its users (the "**Data Principals**"), emphasizing the rights of the individuals and the obligations of the Data Fiduciary.

WHEREAS, the Data Fiduciary intends for this document to serve as a comprehensive notice to Data Principals regarding the nature of data processing, the security measures implemented to prevent unauthorized access, and the mechanisms available for grievance redressal and the exercise of statutory rights.

## **1. DEFINITIONS**

### **1.1 Act**

Refers to the Digital Personal Data Protection Act, 2023, along with any rules, regulations, notifications, and guidelines issued thereunder, as amended from time to time.

## **1.2 Child**

Means an individual who has not completed eighteen years of age, as defined under Section 2(f) of the Act.

## **1.3 Data Fiduciary**

Refers to Lenient Tree, which, alone or in conjunction with other persons, determines the purpose and means of processing of personal data under this Privacy Policy.

## **1.4 Data Principal**

Means the individual to whom the personal data relates and where such individual is a child, includes the parents or lawful guardian of such child, and where such individual is a person with a disability, includes her lawful guardian, acting on her behalf.

## **1.5 Data Processor**

Means any person who processes personal data on behalf of Lenient Tree as the Data Fiduciary.

## **1.6 Personal Data**

Means any data about an individual who is identifiable by or in relation to such data, including data that is in digital form or is subsequently digitized after being collected in non-digital form.

## **1.7 Processing**

In relation to personal data, means a wholly or partly automated operation or a set of operations performed on digital personal data, and includes operations such as collection, recording, organisation, structuring, storage, adaptation, alteration, retrieval, use, alignment or combination, indexing, sharing, disclosure by transmission, dissemination or otherwise making available, restriction, erasure, or destruction.

## **1.8 Website**

Refers to the digital platform owned and operated by Lenient Tree, accessible via the URL <https://www.lenienttree.com/> and any associated sub-domains or mobile-responsive versions.

## **1.9 Data Protection Board**

Refers to the Data Protection Board of India established by the Central Government under the Act to oversee compliance and adjudicate grievances.

## **1.10 Consent Manager**

Refers to a person registered with the Board who acts as a single point of contact to enable a Data Principal to give, manage, review, and withdraw her consent through an accessible, transparent, and interoperable platform.

#### **1.11 Grievance Officer**

Refers to the individual appointed by Lenient Tree to address the queries or grievances of Data Principals regarding the processing of their personal data.

## **2. SCOPE AND APPLICABILITY**

### **2.1 Material Scope**

This Privacy Policy applies to the processing of all digital personal data collected, received, possessed, stored, dealt with, or handled by Lenient Tree through its website located at [www.lenienttree.com](http://www.lenienttree.com) (the "**Website**") and all associated services, digital platforms, competition portals, and tools offered by Lenient Tree (collectively, the "**Services**").

### **2.2 Applicability to Data Principals**

This Policy is applicable to all individuals whose personal data is processed by Lenient Tree, including but not limited to:

- 2.2.1 Students and individual users who register an account or participate in competitions and hackathons.

2.2.2 Representatives of educational institutions, sponsors, and corporate partners who interact with the Website.

2.2.3 Any visitor or guest who accesses the Website for informational purposes.

## 2.3 **Nature of Data Processed**

In accordance with the Digital Personal Data Protection Act, 2023 ("DPDPA"), this Policy governs personal data that is:

2.3.1 Collected in digital form directly from the Data Principal through the Website.

2.3.2 Collected in non-digital form and subsequently digitized by Lenient Tree for the purpose of providing Services.

## 2.4 **Territorial Applicability**

This Policy applies to the processing of digital personal data within the territory of India. It also extends to the processing of digital personal data outside the territory of India if such processing is in connection with any activity related to the offering of goods or services to Data Principals within the territory of India.

## 2.5 **Boundaries of Data Processing**

This Policy defines the limits of Lenient Tree's responsibility as a Data Fiduciary. It applies exclusively to the data processing activities conducted under the control of Lenient Tree. It does not apply to:

2.5.1 Personal data processed by an individual for any personal or domestic purpose.

2.5.2 Personal data that is made or caused to be made publicly available by the Data Principal themselves.

2.5.3 Third-party websites, applications, or services that may be linked on the Website. Users are advised that such third parties operate under their own privacy frameworks, and Lenient Tree assumes no liability for their data processing practices.

## **2.6 Service Dependency**

The applicability of specific clauses within this Policy may vary based on the specific Services utilized by the Data Principal. Continued use of the Website constitutes an acknowledgement that the Data Principal falls within the scope of this Policy.

## **3. NOTICE OF DATA COLLECTION AND PURPOSES (DPDPA SECTION 5)**

### **3.1 Identity Data**

The Company collects personal identifiers, including but not limited to, the Data Principal's full legal name and date of birth. This data is essential for the following purposes:

3.1.1 To verify the identity of the Data Principal and ensure they meet the minimum age requirements for specific services.

3.1.2 To validate eligibility criteria for participation in student-exclusive competitions, hackathons, and institutional programs hosted on the Website.

### 3.2 **Contact Data**

We collect contact information, specifically the Data Principal's email address and mobile phone number. This data is processed for the following purposes:

3.2.1 To transmit critical event notifications, registration confirmations, and administrative updates regarding the services.

3.2.2 To provide security-related alerts, facilitate account recovery, and ensure the integrity of the Data Principal's access to the Website.

### 3.3 **Professional and Academic Data**

Lenient Tree collects information related to the Data Principal's academic affiliation (College/University), technical competencies, and links to professional code repositories such as GitHub. This data is utilized for the following purposes:

3.3.1 To construct a professional portfolio within the platform that showcases the Data Principal's skills to the community.



- 3.3.2 To facilitate strategic matching with event sponsors, corporate partners, and organizers for recruitment or collaborative opportunities.

#### **3.4 Transaction Data**

In the event that the Data Principal engages in paid registrations or other financial transactions on the Website, we collect transaction logs and payment metadata. This data is processed for the following purposes:

- 3.4.1 To manage and facilitate event registration fees and ensure the successful completion of financial obligations.
- 3.4.2 To maintain accurate financial records and comply with statutory audit and tax requirements within the jurisdiction of India.

#### **3.5 Notice under Section 5 of the DPDPA 2023**

In accordance with Section 5 of the Digital Personal Data Protection Act, 2023, the Data Principal is hereby notified of the specific categories of data collected and the purposes for which such data is processed as detailed in subsections 3.1 through 3.4.

- 3.5.1 The Data Fiduciary ensures that the processing of personal data is limited strictly to the purposes for which notice has been provided or as otherwise permitted by law.

- 3.5.2 Any processing for purposes other than those specified herein shall require a fresh notice and, where applicable, the obtaining of fresh consent from the Data Principal.

## **4. LAWFUL BASIS FOR PROCESSING**

### **4.1 Consent-Based Processing**

In accordance with Section 4 and Section 6 of the Digital Personal Data Protection Act, 2023, the primary legal ground for processing personal data on the Website is the free, specific, informed, unconditional, and unambiguous consent of the Data Principal. Such consent is obtained through a clear affirmative action at the point of data collection, ensuring that the Data Principal is fully aware of the purposes for which their data is being processed.

### **4.2 Certain Legitimate Uses**

Lenient Tree may process personal data without obtaining express consent for certain legitimate uses as prescribed under Section 7 of the Digital Personal Data Protection Act, 2023. These uses include, but are not limited to:

- 4.2.1 Situations where the Data Principal voluntarily provides their personal data to Lenient Tree for a specified purpose and has not indicated that they do not consent to the processing of such data for that purpose.
- 4.2.2 Processing necessary for the performance of any function under any law for the time being in force in India or in the interest of the sovereignty and integrity of India or the security of the State.

- 4.2.3 Compliance with any judgment, decree, or order issued under any law for the time being in force in India, or for responding to any legal process or enforcing any legal right or claim.
- 4.2.4 Responding to a medical emergency involving a threat to the life or a severe threat to the health of the Data Principal or any other individual.
- 4.2.5 Taking measures to provide medical treatment or health services to any individual during an epidemic, outbreak of disease, or any other threat to public health.

#### **4.3 Contractual Necessity and Obligations**

Where the processing of personal data is essential for the performance of a contract to which the Data Principal is a party, such as facilitating event registrations or sponsor matching, the processing is conducted on the basis of consent provided at the time of engagement or the voluntary provision of data for said specific contractual objectives.

#### **4.4 Legal Compliance and Statutory Duties**

Lenient Tree reserves the right to process personal data when such processing is mandatory for compliance with statutory obligations, including but not limited to tax regulations, audit requirements, and reporting to regulatory authorities in Ernakulam, Kerala, or national authorities in India.

#### **4.5 Burden of Proof and Documentation**

In accordance with the Act, Lenient Tree maintains comprehensive records to demonstrate that valid notice was provided to the Data Principal and that all processing activities are grounded in one of the aforementioned lawful bases. The Data Fiduciary shall bear the responsibility of proving that consent was obtained or that a legitimate use applies in the event of any regulatory inquiry.

## **5. CONSENT AND WITHDRAWAL (DPDPA SECTION 6)**

### **5.1 Nature of Consent**

In accordance with Section 6 of the Digital Personal Data Protection Act, 2023 ('DPDPA'), any consent provided by the Data Principal for the processing of their digital personal data shall be free, specific, informed, unconditional, and unambiguous. Such consent must be signified through a clear affirmative action and shall be limited to the personal data necessary for the specified purpose of processing.

### **5.2 Provision of Notice**

Prior to or at the time of seeking consent, Lenient Tree shall provide the Data Principal with a notice, as detailed in Section 3 of this Policy, specifying the personal data to be collected and the purpose for which it will be processed. This notice is available in English and, upon request, may be provided in any of the languages specified in the Eighth Schedule to the Constitution of India, as required by the Act.

### **5.3 Right to Withdraw Consent**

The Data Principal shall have the right to withdraw their consent at any time. The ease of withdrawing consent shall be comparable to the ease with which consent was initially given. Upon the withdrawal of consent, Lenient Tree and its Data Processors shall, within a reasonable time, cease the processing of the personal data unless such processing is required or authorized under the Act or any other applicable law in India.

#### **5.4 Procedure for Withdrawal**

**To facilitate the withdrawal of consent, Lenient Tree provides the following mechanisms:**

**5.4.1 Privacy Dashboard:** The Data Principal may log into their account on [www.lenienttree.com](http://www.lenienttree.com) and utilize the toggle switches or deletion requests within the 'Privacy Dashboard' to revoke consent for specific processing activities.

**5.4.2 Electronic Communication:** The Data Principal may send an email to the Data Protection Officer at [dpo@lenienttree.com](mailto:dpo@lenienttree.com) with the subject line 'Withdrawal of Consent,' clearly stating the scope of data for which consent is being revoked.

#### **5.5 Consequences of Withdrawal**

The withdrawal of consent shall not affect the legality of any processing of personal data performed based on consent prior to its withdrawal. However, if the Data Principal withdraws consent for data that is essential for the provision of services (such as Identity Data for competition eligibility), Lenient Tree may

be unable to continue providing those specific services or maintain the Data Principal's account.

## **5.6 Consent Manager**

The Data Principal may give, manage, review, or withdraw their consent through a Consent Manager registered with the Data Protection Board of India. The Consent Manager shall be accountable to the Data Principal and shall act on their behalf in such manner as may be prescribed under the DPDPA rules.

## **5.7 Burden of Proof**

In any proceeding under the Act, where the processing of personal data is based on consent, Lenient Tree shall bear the burden of proving that a notice was given to the Data Principal and that consent was obtained in accordance with the provisions of the Act and the rules made thereunder.

# **6. SPECIAL PROVISIONS FOR CHILDREN (DPDPA SECTION 9)**

## **6.1 Definition of a Child**

In accordance with Section 2(f) of the Digital Personal Data Protection Act, 2023, a "**Child**" is defined as an individual who has not completed eighteen years of age. Lenient Tree recognizes the heightened protection required for the digital personal data of children.

## **6.2 Requirement of Verifiable Consent**

In compliance with Section 9(1) of the Act, Lenient Tree shall not process the personal data of a child without obtaining the verifiable consent of the parent or lawful guardian of such child. This consent must be provided through a clear affirmative action before any data processing activities commence.

### **6.3 Age Verification and Implementation of Age Gates**

Lenient Tree implements technical and organizational measures, commonly referred to as "**Age Gates**," to identify users who are children. All users are required to declare their age during the registration process. If an applicant is identified as being under the age of 18, the account creation process will be suspended until parental or guardian identity is verified.

### **6.4 Parental Verification Mechanisms**

**To ensure the validity of consent, we utilize robust verification methods which may include:**

- 6.4.1 Aadhaar-based OTP verification linked to the registered mobile number of the parent or lawful guardian;
- 6.4.2 Tokenized micro-payment transactions to validate the financial instrument of the parent or guardian; or
- 6.4.3 Submission of digitally signed declarations by the parent or lawful guardian through government-approved identity portals.

## 6.5 Prohibited Processing Activities

In strict adherence to Sections 9(2) and 9(3) of the Act, Lenient Tree shall not engage in the following processing activities concerning children:

- 6.5.1 **Behavioral Tracking:** We shall not track, monitor, or profile the online behavior of children for any purpose whatsoever.
- 6.5.2 **Targeted Advertising:** We shall not direct targeted advertisements or marketing communications to children or use their data to curate personalized commercial content.
- 6.5.3 **Detrimental Processing:** We shall not engage in any form of data processing that is likely to cause a detrimental effect on the well-being of a child, including but not limited to psychological or physical harm.

## 6.6 Rights of Parents and Guardians

A parent or lawful guardian who has provided consent for a child shall be considered the representative of the Data Principal (the child) and may exercise all statutory rights under the Act, including the right to withdraw consent, the right to seek correction of the child's data, and the right to demand erasure of the child's personal data when the purpose of processing is fulfilled.

## 6.7 Exceptions



Lenient Tree may process a child's data without following the specific provisions of Section 9 only in such circumstances or for such purposes as may be specifically exempted by the Central Government through notification under the Act.

## **7. HOW WE USE YOUR INFORMATION**

### **7.1 Provision of Services and Platform Functionality**

Lenient Tree processes your Personal Data to provide the core functionalities of the Website, including but not limited to the creation and maintenance of user accounts, the processing of registrations for student competitions, and the verification of eligibility criteria based on the Identity Data provided.

### **7.2 Portfolio Development and Professional Matching**

In accordance with our commitment to student career development, we utilize Professional Data—such as college affiliation, technical skills, and GitHub repository information—to construct user portfolios. This data is processed to facilitate matching between students and potential sponsors or event organizers, ensuring that participants are aligned with opportunities relevant to their skill sets.

### **7.3 Communication and Administrative Notifications**

We utilize your Contact Data to facilitate essential communications, including the following sub-purposes:

- 7.3.1 Sending administrative information regarding updates to our terms, conditions, and this Privacy Policy.
- 7.3.2 Delivering security-related alerts, including account verification codes, multi-factor authentication triggers, and notifications of unauthorized login attempts.
- 7.3.3 Providing critical updates regarding specific events, hackathons, or competitions for which you have registered or expressed interest.

#### **7.4 Operational Optimization and Analytics**

We process technical and usage data to monitor the performance of the Website, troubleshoot software bugs, and conduct data analysis to improve user interface design and service efficiency. Such processing is conducted to enhance the overall digital experience of the Data Principal and ensure the stability of the platform.

#### **7.5 Safety, Security, and Fraud Prevention**

To maintain a secure environment, Lenient Tree processes data to detect, prevent, and mitigate fraudulent activities, security breaches, or other potentially prohibited or illegal activities. This includes the enforcement of our Terms of Service and ensuring that only eligible students participate in restricted competitions.

#### **7.6 Legal and Regulatory Compliance**

We may process and disclose your personal data as required by the laws of India, including compliance with orders from the Data Protection Board of India, law enforcement agencies, or other statutory authorities. This includes processing necessary to respond to legal claims or to protect the rights, property, or safety of Lenient Tree, our users, or the public.

## **7.7 Sponsor and Partner Engagement**

Where you have registered for an event sponsored by a third party, we process your Identity Data and Professional Data to generate participant lists and performance metrics to be shared with the respective event partners, strictly for the purposes of the specific event and related career opportunities.

## **8. HOW WE SHARE YOUR INFORMATION**

### **8.1 Service Providers and Data Processors**

We may engage third-party entities and individuals (collectively, "**Data Processors**") to facilitate our services, perform website-related services, or assist us in analyzing how our website is used. These Data Processors are contractually obligated to process your personal data only under our documented instructions and in accordance with the Digital Personal Data Protection Act, 2023, ensuring that reasonable security safeguards are maintained at all times.

### **8.2 Event Sponsors and Organizers**

To fulfill the core purpose of our platform, which includes facilitating student competitions and career opportunities, we share your Professional Data and

Identity Data with event sponsors and partner organizations. This sharing is conducted strictly for the purposes of:

- 8.2.1 Facilitating registration and participation in specific hackathons, contests, or events you have voluntarily entered.
- 8.2.2 Providing sponsors with access to your portfolio and GitHub profiles for potential recruitment or mentorship opportunities as part of the event's stated objectives.

### 8.3 **Legal and Regulatory Disclosure**

Notwithstanding anything to the contrary, Lenient Tree may disclose your digital personal data if required to do so by law or in the good faith belief that such action is necessary to:

- 8.3.1 Comply with a legal obligation, including requests from the Data Protection Board of India or other statutory authorities.
- 8.3.2 Comply with a valid order from a court of competent jurisdiction located in Ernakulam, Kerala, or any other authorized judicial body in India.
- 8.3.3 Protect and defend the rights, property, or safety of Lenient Tree, its users, or the public.

### 8.4 **Business Transfers**

In the event that Lenient Tree undergoes a business transition, such as a merger, acquisition by another company, or sale of all or a portion of its assets, your personal data may be among the assets transferred. The recipient of such data shall be bound by the same or substantially similar privacy obligations as set forth in this policy, and we will provide notice before your personal data becomes subject to a different privacy policy.

## **8.5 Professional Matching and Networking**

When you utilize the Portfolio and Skill-matching features of the website, certain elements of your professional data may be visible to other registered users or organizers to facilitate networking, provided that such visibility is consistent with the privacy settings you have selected within your account dashboard.

## **8.6 Non-Disclosure of Personal Data**

Except as provided in this Section 8, Lenient Tree does not sell, rent, or trade your personal data to third parties for their marketing or commercial purposes without your explicit, affirmative consent.

# **9. COOKIES AND OTHER TRACKING TECHNOLOGIES**

## **9.1 Use of Cookies and Tracking Technologies**

Lenient Tree uses cookies, web beacons, pixel tags, and similar tracking technologies to collect and store certain information automatically when you visit or interact with our website ([www.lenienttree.com](http://www.lenienttree.com)). These technologies

are employed to enhance user experience, analyze website traffic, and ensure the security of our digital infrastructure.

## 9.2 Classification of Cookies Used

**We utilize several categories of cookies to provide a seamless experience on our platform:**

**9.2.1 Strictly Necessary Cookies:** These are essential for the fundamental operation of the website, including user authentication, session management, and the execution of security protocols. These cannot be disabled as they are required to provide the core services requested by the user.

**9.2.2 Analytical and Performance Cookies:** These technologies allow us to monitor website performance and traffic patterns. We use this data to understand how users navigate the platform, identify technical issues, and improve the overall efficiency of our student-focused services.

**9.2.3 Functional Cookies:** These are used to recognize you when you return to our website. This enables us to personalize our content for you, such as remembering your specific preferences, professional skills, or previous competition entries.

## 9.3 Web Beacons and Embedded Scripts

In addition to cookies, we may use web beacons (small transparent graphic images) and embedded scripts to collect information about your interaction with our website and emails. This helps us measure the effectiveness of our

event notifications and communication campaigns directed at the student community.

#### **9.4 User Consent and Management**

Upon your first visit to our website, you will be presented with a cookie consent banner. Except for strictly necessary cookies, all tracking technologies are deployed only with your affirmative consent. You may manage or withdraw your consent at any time through your browser settings or the specialized "**Privacy Dashboard**" provided in your account settings.

#### **9.5 Impact of Disabling Cookies**

While you are free to decline or disable cookies through your browser configurations, please be advised that certain features of the Lenient Tree platform, including automated portfolio updates and secure competition registration, may not function as intended or may become inaccessible.

#### **9.6 Restriction on Behavioral Tracking for Children**

In strict adherence to Section 9 of the Digital Personal Data Protection Act, 2023, Lenient Tree does not engage in any form of behavioral tracking, targeted advertising, or profiling of individuals identified as Children (under 18 years of age). Any tracking technologies used on accounts belonging to Children are strictly limited to necessary functional and security purposes.

#### **9.7 Third-Party Tracking**

Certain third-party service providers, such as analytics partners and payment gateways, may use their own cookies or tracking technologies on our website. We do not have direct control over these third-party technologies; however, we ensure that such partners adhere to stringent data protection standards as required by the DPDPA 2023.

## **10. DATA PRINCIPAL RIGHTS (DPDPA SECTIONS 11-14)**

### **10.1 Right to Access Information about Personal Data**

In accordance with Section 11 of the Digital Personal Data Protection Act, 2023, the Data Principal shall have the right to obtain from Lenient Tree, upon a valid request: (i) a summary of the personal data which is being processed and the processing activities undertaken; (ii) the identities of all other Data Fiduciaries and Data Processors with whom the personal data has been shared, along with a description of the personal data so shared; and (iii) any other information as may be prescribed by the Central Government from time to time.

### **10.2 Right to Correction, Completion, Updating, and Erasure**

Pursuant to Section 12 of the Digital Personal Data Protection Act, 2023, the Data Principal shall have the right to request the correction, completion, updating, or erasure of their personal data for which they have previously given consent or which is processed for certain legitimate uses.

#### **10.2.1 Correction, Completion, and Updating:** Lenient Tree shall, upon a valid request from the Data Principal, correct any inaccurate or misleading personal data, complete any incomplete personal data, and update the personal data as



necessary to ensure its accuracy and relevance for the purposes for which it was collected.

- 10.2.2 **Erasure:** Lenient Tree shall erase the personal data of a Data Principal upon receiving a request for erasure, unless retention of such data is necessary for the specified purpose for which it was processed, or for compliance with any legal obligation or law for the time being in force.

### 10.3 **Right of Grievance Redressal**

In accordance with Section 13 of the Digital Personal Data Protection Act, 2023, the Data Principal shall have the right to have readily available means of grievance redressal provided by Lenient Tree. The Data Principal may register a grievance regarding any act or omission of Lenient Tree in relation to the processing of their personal data or the exercise of their rights.

- 10.3.1 The Data Principal shall exhaust the internal grievance redressal mechanism of Lenient Tree as set forth in Section 18 of this Policy before approaching the Data Protection Board of India.

### 10.4 **Right to Nominate**

Pursuant to Section 14 of the Digital Personal Data Protection Act, 2023, the Data Principal shall have the right to nominate, in such manner as may be prescribed, any other individual, who shall, in the event of the death or incapacity of the Data Principal, exercise the rights of the Data Principal under the Act and this Policy.

10.4.1 For the purposes of this clause, "**incapacity**" means the inability of a Data Principal to exercise their rights due to unsoundness of mind or infirmity of body.

## 10.5 **Procedure for Exercising Statutory Rights**

To exercise any of the rights mentioned in this Section 10, the Data Principal may submit a formal request through the "**Privacy Dashboard**" located within their account settings on the Website or by sending a written communication to the designated Data Protection Officer.

10.5.1 Lenient Tree reserves the right to verify the identity of the individual making the request to ensure that the request originates from the actual Data Principal, their lawful guardian, or their authorized nominee.

10.5.2 All requests shall be acknowledged and processed within the timelines stipulated under the Act, and Lenient Tree shall provide reasons in writing if any request for erasure or correction is denied in accordance with legal exemptions.

## 11. **DATA SECURITY AND BREACH NOTIFICATION**

### 11.1 **Reasonable Security Safeguards**

In accordance with Section 8 of the Digital Personal Data Protection Act, 2023, Lenient Tree implements and maintains appropriate technical and organizational measures to ensure a level of security appropriate to the risk of processing personal data. These measures are designed to prevent the

unauthorized or accidental access, collection, use, disclosure, copying, modification, disposal, or destruction of digital personal data.

## 11.2 Technical Security Measures

Lenient Tree utilizes a combination of industry-standard security protocols to protect the integrity and confidentiality of your information, including but not limited to:

**11.2.1 Encryption:** We employ Advanced Encryption Standard (AES-256) to secure data at rest. All data transmitted between your web browser and our servers is encrypted using Secure Socket Layer (SSL) and Transport Layer Security (TLS) technology.

**11.2.2 Access Control:** We enforce strict role-based access control (RBAC) mechanisms, ensuring that personal data is only accessible to authorized employees and contractors who require such access to perform their specific job functions. All such personnel are bound by strict confidentiality obligations.

**11.2.3 Infrastructure Security:** Our web applications are hosted in secure data centers with 24/7 monitoring, firewalls, and intrusion detection systems to mitigate the risk of external cyber-attacks or unauthorized entry.

## 11.3 Security Audits and Monitoring

To ensure the continued effectiveness of our security framework, we conduct periodic security audits and vulnerability assessments. We monitor our systems for potential security breaches and maintain comprehensive logs of

data processing activities to facilitate forensic analysis in the event of an incident.

#### **11.4 Breach Notification Protocol**

In the event of a personal data breach, defined as any unauthorized processing of personal data or accidental disclosure, acquisition, sharing, use, alteration, destruction, or loss of access to personal data that compromises its confidentiality, integrity, or availability, Lenient Tree shall adhere to the following statutory obligations:

**11.4.1 Notification to the Board:** We shall provide notice of the personal data breach to the Data Protection Board of India in such form and manner as may be prescribed under the Act and relevant rules.

**11.4.2 Notification to Data Principals:** We shall notify each affected Data Principal of the breach. Such notification will include details regarding the nature of the breach, the data affected, and the remedial steps taken or proposed to be taken by Lenient Tree to mitigate the impact of the breach.

#### **11.5 Data Principal Responsibility**

While Lenient Tree strives to use commercially acceptable means to protect your personal data, no method of transmission over the internet or method of electronic storage is 100% secure. You are responsible for maintaining the confidentiality of your account credentials and for notifying us immediately at our registered address in Ernakulam, Kerala, if you suspect any unauthorized access to your account.

## **12. DATA RETENTION AND ERASURE**

### **12.1 General Retention Principle**

Lenient Tree, acting as the Data Fiduciary, shall retain your digital personal data only for the duration necessary to fulfill the specific purposes outlined in this Privacy Policy, or as required by applicable laws in India.

### **12.2 Grounds for Erasure**

In compliance with the Digital Personal Data Protection Act, 2023, we shall erase personal data, and shall cause our Data Processors to erase such personal data, upon the occurrence of any of the following events:

12.2.1 The Data Principal withdraws their consent for the processing of such personal data in the manner prescribed under Section 5 of this Policy.

12.2.2 It is reasonable to assume that the specified purpose for which the personal data was collected is no longer being served by its continued retention.

### **12.3 Deemed Completion of Purpose**

For the purposes of determining when data is no longer required, Lenient Tree applies the following standards:

12.3.1 For data collected for specific events or competitions, the purpose is deemed fulfilled once the event concludes and all related obligations, including portfolio updates and sponsor matching, are finalized.

12.3.2 An account shall be deemed inactive if the Data Principal has not logged in or performed any affirmative action on the platform for a period exceeding three (3) years. Upon such inactivity, the personal data associated with the account shall be slated for erasure.

#### **12.4 Manner of Erasure**

Erasure shall be carried out in a secure manner that renders the personal data irrecoverable. This includes the deletion of digital records from our active databases and the purging of data from backup storage within a reasonable technical timeframe.

#### **12.5 Legal and Statutory Overrides**

Nothing in this Section shall require Lenient Tree to erase personal data that is required to be maintained for compliance with any legal obligation, for the performance of a contract, or for the establishment, exercise, or defense of legal claims. Such data shall be strictly siloed and processed only for the required statutory purpose.

### **13. THIRD-PARTY WEBSITES AND SERVICES**

#### **13.1 Disclaimer of Third-Party Links**

The Website may contain hyperlinks to external websites, platforms, applications, or digital services that are not owned, operated, or controlled by Lenient Tree. These links are provided solely for the convenience and reference of the Data Principal. The inclusion of any link does not imply an endorsement, authorization, or representation of our affiliation with that third party.

### **13.2 Limitation of Policy Scope**

This Privacy Policy applies exclusively to the digital personal data collected and processed by Lenient Tree. We do not exercise control over, and are not responsible for, the privacy practices, data protection measures, or the content of any third-party websites. Once a Data Principal leaves our Website via such a link, the protection of their personal data is no longer governed by this Policy or the safeguards maintained by Lenient Tree.

### **13.3 Independent Data Fiduciaries**

In many instances, such as when interacting with event sponsors, hackathon organizers, or payment processors linked through our services, the third party acts as an independent Data Fiduciary under the Digital Personal Data Protection Act, 2023. Their collection, storage, and processing of your personal data are subject to their own respective privacy notices and legal terms.

### **13.4 User Diligence**

We strongly advise all Data Principals to exercise caution and review the privacy policies and terms of service of every third-party website or application they visit. It is the responsibility of the Data Principal to ensure they are

satisfied with the data handling practices of such external entities before providing any personal data.

### **13.5 Third-Party Features and Widgets**

The Website may include integrated features such as social media plugins, application programming interfaces (APIs), or Single Sign-On (SSO) services (e.g., GitHub or Google login). These features may collect your IP address or set cookies to enable the feature to function properly. Your interaction with these features is governed by the privacy policy of the specific third-party company providing the service.

### **13.6 No Liability for Third-Party Breach**

Lenient Tree shall not be held liable for any unauthorized disclosure, misuse, loss, or breach of personal data that occurs on or through a third-party website or service. Any grievances regarding data processed by such third parties must be directed to the respective third party's Grievance Officer or Data Protection Officer.

## **14. INTERNATIONAL DATA TRANSFERS**

### **14.1 Cross-Border Transfers of Personal Data**

Lenient Tree may transfer your digital personal data to countries or territories outside of India for the purposes of processing, storage, and the provision of services. Any such transfer shall be conducted in strict adherence to the requirements of the Digital Personal Data Protection Act, 2023 (DPDPA), and the rules notified thereunder by the Central Government of India.



## 14.2 Compliance with Negative Lists

In accordance with Section 16 of the Act, Lenient Tree shall not transfer personal data to any country or territory that the Central Government of India has notified as a restricted or prohibited jurisdiction for such transfers. We maintain a proactive monitoring mechanism to ensure that data flows are redirected or suspended should any jurisdiction where we operate be added to such a restrictive list.

## 14.3 Safeguards for International Processing

When personal data is transferred to a recipient (including a Data Processor) outside India, we ensure that a comparable level of protection is maintained through the following measures:

**14.3.1 Contractual Obligations:** We enter into legally binding agreements with overseas recipients that mandate compliance with the data protection standards prescribed under the DPDPA 2023.

**14.3.2 Security Protocols:** We verify that the recipient implements reasonable security safeguards, including encryption and access controls, to prevent any unauthorized access or personal data breaches.

**14.3.3 Limited Processing:** The recipient is strictly prohibited from using the personal data for any purpose other than the specific purpose authorized by Lenient Tree and as consented to by the Data Principal.

#### **14.4 Infrastructure and Hosting**

As part of our commitment to providing high-performance services, we utilize global cloud infrastructure providers. While the physical servers may be located in various geographical regions, Lenient Tree retains control over the data and ensures that the administrative and technical controls of these providers meet or exceed Indian statutory requirements.

#### **14.5 Exercise of Rights and Recourse**

Data Principals remain entitled to exercise all statutory rights—including the right to access, correction, and erasure—irrespective of where the personal data is stored or processed. Any grievances arising from international data processing shall be addressed by our Grievance Officer based in Ernakulam, Kerala, India, and are subject to the grievance redressal mechanisms provided under the Act and the jurisdiction of the Data Protection Board of India.

### **15. CHANGES TO THIS PRIVACY POLICY**

#### **15.1 Right to Modify and Amend**

Lenient Tree reserves the unilateral right to revise, update, or modify this Privacy Policy at any time and at its sole discretion. Such revisions may be necessitated by changes in applicable laws, including but not limited to the Digital Personal Data Protection Act, 2023 (DPDPA), evolving technological standards, or modifications in our internal data processing practices and business operations.

#### **15.2 Notification of Substantial Changes**

In the event of any material or substantial changes to this Privacy Policy – specifically those that alter the purpose of processing, the categories of personal data collected, or the exercise of your rights as a Data Principal – we shall provide you with prior notice. Such notification may be delivered through a prominent announcement on the Website homepage, a direct communication to your registered email address, or a notification within your user account dashboard.

### 15.3 **Effective Date of Revisions**

Any changes made to this Privacy Policy shall become effective immediately upon the date of publication on the Website, as indicated by the "**Effective Date**" and "**Version Number**" at the top of this document, unless a specific future date is expressly provided in the notification of the change.

### 15.4 **Requirement for Fresh Consent**

In accordance with Section 6 of the DPDPA 2023, if a change to this Privacy Policy significantly impacts the nature or scope of the processing for which you previously provided consent, Lenient Tree shall seek fresh, affirmative, and informed consent from you before proceeding with such modified processing activities.

### 15.5 **Non-Material Changes**

Changes that are administrative or clerical in nature, or which do not materially affect your rights or the security of your personal data, may be updated without

individual notification. Your continued access to and use of the Website following the posting of such non-material changes constitutes your acknowledgement of the updated terms.

## **15.6 Review Responsibility**

You are encouraged to periodically visit this page and review the Privacy Policy to stay informed of any updates. Our Grievance Officer shall maintain an archive of previous versions of this Privacy Policy, which may be made available to you upon written request for the purpose of comparing changes over time.

## **16. GOVERNING LAW AND JURISDICTION**

### **16.1 Governing Law**

This Privacy Policy, including all matters relating to its validity, construction, performance, and enforcement, shall be governed by and construed in accordance with the laws of the Republic of India. This includes, without limitation, the Digital Personal Data Protection Act, 2023 (DPDPA), the Information Technology Act, 2000, and all rules, regulations, and notifications issued by the Ministry of Electronics and Information Technology (MeitY) or the Data Protection Board of India from time to time.

### **16.2 Jurisdiction**

Subject to the dispute resolution mechanisms set forth in Section 17 of this Policy, the Data Principal and the Data Fiduciary (Lenient Tree) hereby irrevocably agree that the courts and tribunals of competent jurisdiction located

in Ernakulam, Kerala, India, shall have exclusive jurisdiction to adjudicate any dispute, controversy, or claim arising out of or in connection with this Privacy Policy, its interpretation, or the breach thereof.

### **16.3 Compliance with Local Statutes**

Lenient Tree maintains its primary digital operations within the State of Kerala. By using the website ([www.lenienttree.com](http://www.lenienttree.com)), you acknowledge that the processing of your digital personal data is conducted in alignment with the legal standards prevailing in India. Any claim related to the unauthorized processing or breach of data privacy must be grounded in the statutory provisions of the DPDPA 2023 as applicable within the Indian legal framework.

### **16.4 Conflict of Laws**

The parties agree that the principles of conflict of laws shall not apply to this Privacy Policy. In the event that the Data Principal accesses the website from a jurisdiction outside of India, the Data Principal remains responsible for compliance with local laws, provided that the governing law of this agreement remains the law of India as specified in clause 16.1.

### **16.5 Severability of Jurisdiction**

If any competent legal authority or court in Ernakulam finds any portion of this Governing Law and Jurisdiction clause to be invalid or unenforceable, the remaining provisions shall remain in full force and effect, and the parties shall submit to such alternative jurisdiction as may be mandated by the Data Protection Board of India under the DPDPA 2023.

## **17. DISPUTE RESOLUTION**

### **17.1 Amicable Resolution and Internal Redressal**

Any dispute, claim, or controversy arising out of or relating to this Privacy Policy, including its interpretation, breach, or validity, shall first be sought to be resolved through amicable discussions between the Data Principal and Lenient Tree.

17.1.1 The Data Principal shall first exhaust the internal grievance redressal mechanism by submitting a formal written complaint to the designated Grievance Officer, as detailed in Section 18 of this Policy.

17.1.2 Lenient Tree shall acknowledge the receipt of such grievance within the statutory timelines and endeavor to resolve the matter within thirty (30) days from the date of receipt of the complete complaint.

### **17.2 Recourse to the Data Protection Board of India**

In accordance with the provisions of the Digital Personal Data Protection Act, 2023, the Data Principal may approach the Data Protection Board of India only after exhausting the internal grievance redressal mechanism provided by Lenient Tree.

17.2.1 If the Data Principal is unsatisfied with the resolution provided by the Grievance Officer, or if no response is received within the stipulated period, the Data Principal may then file a complaint with the Data Protection Board of India in the manner prescribed under the Act and its associated Rules.

### **17.3 Mediation and Arbitration**

If the dispute is not resolved through the internal grievance mechanism and does not fall within the exclusive primary jurisdiction of the Data Protection Board of India, the parties may agree to resolve the dispute through mediation or binding arbitration.

17.3.1 Any such arbitration shall be conducted in accordance with the Arbitration and Conciliation Act, 1996, and the seat and venue of the arbitration shall be Ernakulam, Kerala, India.

17.3.2 The proceedings shall be conducted in the English language, and the arbitral award shall be final and binding upon both parties.

### **17.4 Governing Law and Judicial Jurisdiction**

This Privacy Policy and any disputes arising hereunder shall be governed by and construed in accordance with the laws of India.

17.4.1 Subject to the exhaustion of statutory remedies under the Digital Personal Data Protection Act, 2023, and the arbitration provisions herein, the courts and tribunals located in Ernakulam, Kerala, India, shall have exclusive jurisdiction over any legal proceedings arising out of or in connection with this Privacy Policy.

## **18. GRIEVANCE REDRESSAL & DATA PROTECTION OFFICER (DPO)**

## 18.1 Designated Officer

In accordance with the Digital Personal Data Protection Act, 2023, Lenient Tree has appointed a dedicated Grievance Officer, who also functions as the Data Protection Officer (DPO), to address any queries, concerns, or complaints regarding the processing of digital personal data and the fulfillment of the Data Fiduciary's obligations.

## 18.2 Contact Details

Data Principals may communicate with the Grievance Officer through the following channels to exercise their statutory rights or report any concerns:

18.2.1 **Name:** Mr Augustine Vadakumchery

18.2.2 **Designation:** Data Protection Officer / Grievance Officer

18.2.3 **Email:** dpo@lenienttree.com

18.2.4 **Postal Address:** Lenient Tree, Vadakumchery, Anappara, Thuravoor Village, Manjapra, Ernakulam, Kerala 683581

## 18.3 Grievance Submission Process

To ensure an efficient review, any grievance must be submitted in writing via the email address specified in Clause 18.2.3. The communication should include the Data Principal's registered account details and a clear, descriptive



statement of the alleged non-compliance or specific concern regarding the processing of their digital personal data.

#### **18.4 Acknowledgment and Resolution Timelines**

Lenient Tree adheres to the following statutory and internal timelines for grievance management to ensure transparency and accountability:

**18.4.1 Acknowledgment:** Every formal grievance received through the designated channels shall be acknowledged within 72 hours of its receipt.

**18.4.2 Resolution:** We shall endeavour to investigate and provide a final resolution or detailed response to the grievance within a period of 30 days from the date of the original submission.

#### **18.5 Condition Precedent for Regulatory Recourse**

As per the requirements of the Digital Personal Data Protection Act, 2023, the Data Principal must first exhaust the internal grievance redressal mechanism provided by Lenient Tree. If the grievance is not resolved to the satisfaction of the Data Principal within thirty (30) days, the Data Principal may subsequently exercise their right to approach the Data Protection Board of India for further adjudication.

### **19. NOTICES**

#### **19.1 Notices to Data Principals**

Except as otherwise provided by the Digital Personal Data Protection Act, 2023, all notices, requests, demands, and other communications required or permitted to be given by Lenient Tree to a Data Principal shall be in writing and delivered electronically. Such communications shall be deemed effective upon transmission to the electronic mail address or mobile number provided by the Data Principal during registration or account update.

## **19.2 Methods of Delivery by the Data Fiduciary**

**Lenient Tree may provide notices through the following channels:**

19.2.1 Sending an email to the primary email address specified in the Data Principal's account profile;

19.2.2 Posting a prominent notification, banner, or alert on the Website ([www.lenienttree.com](http://www.lenienttree.com)) or within the user's dashboard interface;

19.2.3 Sending an SMS or instant message to the registered mobile number, where applicable, for urgent security or breach notifications.

## **19.3 Notices to Lenient Tree**

Any notice, grievance, or legal communication intended for Lenient Tree concerning this Privacy Policy or data processing activities must be directed to the Data Protection Officer / Grievance Officer at the contact details specified in Section 18 of this Policy. Notices sent to other departments or via general social media channels shall not constitute valid legal notice.

#### **19.4 Deemed Receipt**

**A notice shall be deemed to have been duly received:**

- 19.4.1 In the case of email, at the time of transmission, provided that the sender does not receive an automated notification indicating that the email was not delivered;
- 19.4.2 In the case of a posting on the Website, at the moment the Data Principal first accesses the Website or Services following the posting of such notice;
- 19.4.3 In the case of physical delivery to the registered office in Ernakulam, Kerala, upon the date of signed acknowledgement of receipt by an authorized representative of Lenient Tree.

#### **19.5 Language of Communication**

All notices and communications under this Privacy Policy shall be conducted in the English language. In the event that a notice is provided in any other language for convenience, the English version shall prevail in the event of any conflict or ambiguity in interpretation.

#### **19.6 Responsibility for Contact Information**

The Data Principal bears the absolute responsibility for ensuring that their contact information, including email address and mobile number, remains

accurate, current, and functional. Lenient Tree shall not be liable for any failure to receive a notice if such failure results from the Data Principal's provision of inaccurate contact data or the operation of third-party filters (e.g., spam filters) beyond the control of Lenient Tree.

## **EFFECTIVE DATE AND ACCEPTANCE**

This Privacy Policy is effective as of May 28, 2026, and supersedes all prior versions, communications, or understandings regarding the data processing practices of Lenient Tree. This version 2.0 reflects our commitment to transparency and strict adherence to the Digital Personal Data Protection Act, 2023, ensuring that all processing activities are conducted with the highest standards of integrity and legal compliance.

By accessing, registering on, or using the website located at [www.lenienttree.com](http://www.lenienttree.com), you signify your formal acknowledgement that you have read and understood the entirety of this Privacy Policy. Your continued use of our services, or your explicit click-wrap consent provided during the registration process, constitutes your free, specific, informed, unconditional, and unambiguous consent to the processing of your digital personal data by Lenient Tree in its capacity as a Data Fiduciary.

If you represent a minor or a person with a disability, your acceptance of these terms on their behalf implies that you are the lawful guardian and have the requisite authority to provide verifiable consent as mandated under Section 9 of the Digital Personal Data Protection Act, 2023. If you do not agree to the terms and conditions of this policy, you are directed to cease all use of the website and services immediately, as further access without consent may be unauthorized under the Act.

Lenient Tree reserves the right to amend or update this policy at any time to reflect changes in legal requirements or our internal data practices. Any continued use of the platform after such amendments are published on the website shall be deemed as your acceptance of the revised policy. This document, along with any subsequent updates, shall be governed by the laws of India and remains subject to the exclusive jurisdiction of the competent courts in Ernakulam, Kerala.